

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nina Mickens	Team: Team # 2	CCRB Case #: 200901344	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 01/23/2009 12:40 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/23/2010	Precinct: 44
Date/Time CV Reported Mon, 01/26/2009 12:01 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/28/2009 11:43 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Johnny Orellana	00000	920679	044 PCT
2. POF Lauren Cinnante	26250	945381	043 PCT
3. POM Steven Ramunno	11784	930874	044 PCT
4. SGT Eusebio Perez	01414	916421	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Johnny Orellana	Abuse: Lt. Johnny Orellana stopped § 87(2)(b)	A . Substantiated
B . POM Steven Ramunno	Abuse: PO Steven Ramunno searched § 87(2)(b)	B . Complainant Uncooperative
C . POM Steven Ramunno	Force: PO Steven Ramunno used physical force against § 87(2)(b)	C . Exonerated
D . LT Johnny Orellana	Force: Lt. Johnny Orellana used physical force against § 87(2)(b)	D . Unfounded
E . POM Steven Ramunno	Force: PO Steven Ramunno used physical force against § 87(2)(b) after he was handcuffed.	E . Unsubstantiated
F . POF Lauren Cinnante	Discourtesy: PO Lauren Cinnante spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)	F . Unsubstantiated
G . SGT Eusebio Perez	Abuse: Sgt. Eusebio Perez refused to provide his name and shield number to § 87(2)(b)	G . Unsubstantiated

Synopsis

On January 28, 2009, the CCRB received a complaint forwarded from the Internal Affairs Bureau (IAB Log # 09-03660) (Encl. 14a-d). IAB did not do an investigation into the complaint and instead transferred the entire complaint to the CCRB. On January 23, 2009, at approximately 12:40AM, three uniformed officers arriving in a marked police van approached § 87(2)(b) who just exited his apartment building located at § 87(2)(b) in the Bronx. These officers have been identified via the investigation as Lt. Johnny Orellana, PO Steven Ramunno and PO Lauren Cinnante. § 87(2)(b)'s friend, § 87(2)(b) was outside at the time and was talking to § 87(2)(b). PO Ramunno questioned § 87(2)(b) about whether he lived in the building and then requested identification. § 87(2)(g)

Then, PO Ramunno allegedly searched § 87(2)(b) (Allegation B). PO Ramunno obtained § 87(2)(b)'s identification and proceeded to conduct a warrant check. The results of the check were positive and the officers attempted to place § 87(2)(b) under arrest. § 87(2)(b) alleged that PO Ramunno punched him in his left thigh and in the rib (Allegation C). Lt. Orellana then allegedly punched § 87(2)(b) in his leg and twice in the ribs (Allegation D). Several of § 87(2)(b)'s family members and friends came outside and observed the officers' interaction with § 87(2)(b). § 87(2)(b) alleged that PO Ramunno struck him in the ribs after he was in handcuffs and restrained (Allegation E). § 87(2)(b) a friend of § 87(2)(b) alleged that PO Cinnante used profanity when speaking to him outside (Allegation F). When § 87(2)(b) was placed into the rear of the patrol van, he alleged that PO Cinnante used profanity against him. § 87(2)(b)'s friends and family came to the 44th Precinct to inquire about his arrest. § 87(2)(b)'s mother, § 87(2)(b) alleged that she spoke to a sergeant at the desk. This officer has been identified via the investigation as Sgt. Eusebio Perez. § 87(2)(b) alleged that she asked Sgt. Perez for his name and badge number and he did not provide it (Allegation G). Instead, Sgt. Perez covered his badge with his hand so that § 87(2)(b) could not see it.

§ 87(2)(g)

it is recommended that allegation A be closed as "Substantiated." § 87(2)(g)

Therefore it is recommended that allegation B be closed as "Complainant Uncooperative." § 87(2)(g)

Therefore is recommended that allegation C be closed as "Exonerated." § 87(2)(g)

Therefore it is recommended that allegation D be closed as "Unfounded." § 87(2)(g)

Therefore it is recommended that allegation E be closed as "Unsubstantiated." § 87(2)(g)

Therefore it is recommended that allegations F and G be closed as "Unsubstantiated."

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) black male, was interviewed at his home located at § 87(2)(b) § 87(2)(b) in the Bronx on March 12, 2009 Encl. (20a-d). § 87(2)(b) He § 87(2)(b) with brown dread locks and brown eyes. § 87(2)(b) also provided a telephone statement on February 11, 2009 Encl. (19). § 87(2)(g)

On January 23, 2009, at approximately 12:40AM, § 87(2)(b) came out of his building alone located at § 87(2)(b) in the Bronx to go to the grocery store. § 87(2)(b) did not have anything in his hands and was talking to his girlfriend, § 87(2)(b) using his hands free telephone. After § 87(2)(b) closed the front door to the apartment building, he saw his friend, § 87(2)(b) who he has known

from the neighborhood for six months. § 87(2)(b) was alone but § 87(2)(b)'s neighbors, § 87(2)(b) and § 87(2)(b) were outside also. § 87(2)(b) does not know the males' real names. § 87(2)(b) and § 87(2)(b) began to play around. They wrestled and grabbed each other. § 87(2)(b) and § 87(2)(b) began to walk towards the corner of § 87(2)(b). § 87(2)(b) saw a marked police van coming down § 87(2)(b) towards § 87(2)(b) and told § 87(2)(b) to stop playing around before the officers decide to harass them.

§ 87(2)(b) continued to walk towards the store when three uniformed officers exited the marked van on the corner of Anderson Ave by the side of § 87(2)(b)'s building. PO1, identified via the investigation as PO Steven Ramunno, was a white male, 5'6"-5'7" tall, 160-165 pounds, husky build and a bald head. PO Ramunno was the operator of the police van. PO2, identified via the investigation as Lt. Johnny Orellana, was a white male, slim build, 5'6"-5'7" tall and 150 pounds with short black hair. Lt. Orellana was in the passenger's seat and PO3, identified via the investigation as PO Lauren Cinnante, sat in the back of the van. PO Cinnante was a white female 5'4" tall, slim build, 140-145 pounds with long blond hair worn in a ponytail. § 87(2)(b) did not recognize the officers from any previous interactions. PO Ramunno said to § 87(2)(b) "You, come here" and asked § 87(2)(b) what he has been arrested for. § 87(2)(b) stood one foot away from the railing attached to his building. He responded that the question was not the type of thing the officer should ask someone when they jump out on them. PO Ramunno also told § 87(2)(b) to come to him. Lt. Orellana told § 87(2)(b) to put his hands up. § 87(2)(b) complied. Lt. Orellana went inside of § 87(2)(b)'s outer coat pockets and back pants pockets and asked § 87(2)(b) if he had any sharp objects that could cut him. Lt. Orellana did not remove anything from § 87(2)(b)'s pockets. PO Ramunno grabbed § 87(2)(b)'s front pants pockets but did not enter them. Lt. Orellana then told § 87(2)(b) to leave. Lt. Orellana did not ask § 87(2)(b) any additional questions or for identification. Lt. Orellana and PO3 did not have any interaction with § 87(2)(b) at this point. § 87(2)(b) and § 87(2)(b) observed the interaction the officers were having with § 87(2)(b) and § 87(2)(b). § 87(2)(b) went upstairs to get § 87(2)(b)'s mother, § 87(2)(b).

§ 87(2)(b) stood back to observe the officers. PO Ramunno asked § 87(2)(b) for identification. § 87(2)(b) provided his security license. Lt. Orellana and PO Cinnante stood near § 87(2)(b) while PO Ramunno went back to the police van to check § 87(2)(b)'s identification. § 87(2)(b) was still on the phone with § 87(2)(b) at the time and began to smile. Lt. Orellana and PO Cinnante asked § 87(2)(b) why he was laughing and smiling. Lt. Orellana asked § 87(2)(b) if he lived in the building and where he was coming from. § 87(2)(b) said he liked smiling and was a happy person. § 87(2)(b) § 87(2)(b)'s step father, § 87(2)(b) and § 87(2)(b)'s sisters, § 87(2)(b), § 87(2)(b) and § 87(2)(b) came outside of the building and asked the officers why they were stopping § 87(2)(b). § 87(2)(b)'s friend, § 87(2)(b) also came outside and observed the interaction.

Five minutes passed and PO Ramunno returned from the vehicle and said § 87(2)(b) had a warrant. PO Cinnante reached for her handcuffs. The officers did not tell § 87(2)(b) that he was being arrested and did not give him any verbal instructions. Lt. Orellana grabbed § 87(2)(b)'s left arm, turned him around and pushed him towards the railing attached to the building. § 87(2)(b) said he did not understand how he had a warrant. He told Lt. Orellana that he did not have to be so rough and could have just asked him to turn around. Lt. Orellana told § 87(2)(b) to get on the pole. § 87(2)(b) was compliant although PO Ramunno still held onto the left arm and pressed his right arm into § 87(2)(b)'s back. PO Ramunno twisted § 87(2)(b)'s arm behind his back. § 87(2)(b) did not move around or prevent the officers from placing handcuffs on him in anyway. PO Ramunno punched § 87(2)(b) in his left thigh and in the rib. Lt. Orellana punched § 87(2)(b) in his leg and twice in the ribs. § 87(2)(b) did not move and told the officers that he was not resisting and hitting him was not necessary. § 87(2)(b)'s demeanor and tone changed as he raised his voice and began to use profanity.

PO Cinnante handcuffed § 87(2)(b). PO Ramunno then punched § 87(2)(b) once again in the left side of his ribs. The officers leaned § 87(2)(b) over the railing and his feet were no longer on the ground. The officers began to push § 87(2)(b) towards the van. § 87(2)(b) came within six feet of the officers and said their behavior was not called for. Lt. Orellana asked § 87(2)(b) what he was doing and why he was getting so close. Lt. Orellana pushed § 87(2)(b) in the chest area. The other witnesses did not come close to § 87(2)(b) or the officers. § 87(2)(b) interacted with the officers for 20 minutes and he did not see the officers

interact with any else besides § 87(2)(b) and § 87(2)(b). The officers pushed § 87(2)(b) into the van and did not allow him to enter voluntarily.

While inside of the van, § 87(2)(b) sat in the third row of seats alone. PO Ramunno drove and Lt. Orellana sat in the passenger's seat. § 87(2)(b) and PO Cinnante began to argue. § 87(2)(b) said, "This is fucking ridiculous. You officers are taking this shit out of control." PO Cinnante told § 87(2)(b) that he was out of control because he was resisting arrest. § 87(2)(b) said, "I was not fucking resisting arrest and I don't know what the fuck you guys are doing." PO Cinnante said, "Oh, you are still fucking cursing at me. I don't give a fuck." § 87(2)(b) said "Fuck you" to PO Cinnante and she said "Fuck you and fuck your mother." The two continued to curse at each other during the drive to the precinct. PO Cinnante was the only officer that used profanity with § 87(2)(b). None of the officers used profanity with any of the civilians outside of § 87(2)(b)'s apartment building.

§ 87(2)(b) was taken to the 44th Precinct. The officers did not explain why they approached § 87(2)(b) at any time during the police interaction. The officers stopped § 87(2)(b) at the front desk. § 87(2)(b) and § 87(2)(b) came to the precinct. While there, the officers grabbed § 87(2)(b)'s arms pushing and shoving him to get into a holding cell. § 87(2)(b) was able to walk on his own but the officers were being forceful with him. § 87(2)(b) did not complain of pain and did not request medical attention.

Results of Investigation

§ 87(2)(b) a § 87(2)(b) black male, was interviewed at § 87(2)(b) § 87(2)(b) in the Bronx on March 12, 2009 (Encl. 18a-d). § 87(2)(b) is § 87(2)(b) with black hair and brown eyes. § 87(2)(b) also provided a telephone statement on March 11, 2009 (Encl. 17). § 87(2)(g)

On January 23, 2009, at approximately 12:40AM, § 87(2)(b) was looking out of his apartment window at § 87(2)(b) on the § 87(2)(b) in the Bronx. He saw a marked police vehicle pull up and saw officers approaching § 87(2)(b) and another male on the corner of § 87(2)(b) and § 87(2)(b). § 87(2)(b)'s building is directly across the street from § 87(2)(b). § 87(2)(b) was not certain if the male's name was § 87(2)(b) or § 87(2)(b). The male has been identified via the investigation as § 87(2)(b). § 87(2)(b) could not see the direction from which the officers came and did not hear any sirens or see any flashing lights. § 87(2)(b) did not notice the marked police van until the officers were already stopped on the corner. After 10-20 seconds, the officers exited the van. § 87(2)(b) was 7-10 yards from the curb and the street lights in the area were on. Several people passed by but the officers spoke directly to § 87(2)(b) and § 87(2)(b). A bald white male officer, identified via the investigation as PO Ramunno, a Spanish male officer, identified via the investigation as Lt. Orellana and a white female officer, identified as PO Cinnante, exited the van. PO Ramunno is known in the area and has stopped several people on numerous occasions.

§ 87(2)(b) was not certain why the officers stopped § 87(2)(b) and believed the officers were racially profiling § 87(2)(b). The officers approached § 87(2)(b). § 87(2)(b) could not hear the conversation that transpired. PO Ramunno seemed to be the leader. He grabbed § 87(2)(b)'s right or left arm. At this point § 87(2)(b) went downstairs to see what was happening. After five seconds, § 87(2)(b) was downstairs and observed the officers bending § 87(2)(b)'s back over a pole outside of § 87(2)(b). § 87(2)(b)'s arms were raised up in the air and he did not attempt to strike the officers. PO Ramunno faced § 87(2)(b) and began to hit him. The other officers stood back. § 87(2)(b) screamed at the officers and told them to leave § 87(2)(b) alone. An officer asked § 87(2)(b) if he wanted to go to jail too. § 87(2)(b) said yes and told the officers that they were beating § 87(2)(b) up for overtime. PO Ramunno said, "Yes I just made my overtime."

§ 87(2)(b) was still outside along with two unidentified Spanish males. § 87(2)(b)'s mother and sisters came outside when the officers had § 87(2)(b) on the pole and yelled at the officers. § 87(2)(b)'s friend, § 87(2)(b) and his girlfriend came outside too. § 87(2)(b) yelled to his

mother and asked her if she could see what was happening. § 87(2)(b) asked the officers why they were arresting him. § 87(2)(b) kicked garbage at the police van and tried to give the officers a hard time. PO Cinnante and § 87(2)(b) began to curse at each other. She commented to § 87(2)(b) “go the fuck inside”, “shut the fuck up” and “it’s none of your fucking business.” § 87(2)(b) responded, “Fuck you bitch. Fuck the police.” § 87(2)(b) told the officers to arrest him or make him shut up. PO Cinnante asked § 87(2)(b) if he wanted to go to jail too. § 87(2)(b) could not see what Lt. Orellana was doing because his attention was on PO Cinnante. PO Ramunno and Lt. Orellana removed § 87(2)(b) from the pole, handcuffed him and placed him into their van. PO Ramunno sat in the passenger’s side of the van. The officers never physically interacted with § 87(2)(b). § 87(2)(b) told his mother, family and friends to follow the police van to the precinct.

§ 87(2)(b) and § 87(2)(b)’s mother and sisters went to the 44th Precinct. As § 87(2)(b) tried to talk and ask for the officers’ badge numbers, the officers covered their badges. PO Ramunno covered his badge with his hand saying, “I’m not showing you anything. I don’t give a damn.” § 87(2)(b) was upset, yelling and screaming while inside of the precinct. An officer asked § 87(2)(b) to step outside of the precinct. Another Spanish officer (dark skin, with a short hair cut, mid 30’s in age) with sergeant stripes on his sleeve said, “I’ll come out there and get you.” The officer asked § 87(2)(b) if he wanted to go with § 87(2)(b). § 87(2)(b) perceived this to be a threat of arrest. This officer came outside and stared at § 87(2)(b) but did not say anything. Other arrestees were entering the precinct at the time so § 87(2)(b) was asked to step away or he would have to be arrested for safety and security reasons. § 87(2)(b) did not enter the precinct again. He yelled but did not threaten the officers or try to cause the officers any physical harm.

§ 87(2)(b) a § 87(2)(b) black female, was interviewed in her home located at § 87(2)(b) in the Bronx on March 12, 2009 (Encl. 22a-d). § 87(2)(b) is § 87(2)(b) brown hair and brown eyes.

On January 23, 2009, at approximately 12:40AM, § 87(2)(b) was upstairs in her apartment when she heard banging on the door. § 87(2)(b) a neighbor who lived in § 87(2)(b) reported that the police had § 87(2)(b)’s son, § 87(2)(b) downstairs. When § 87(2)(b) went outside she saw the police van pulling off. § 87(2)(b) saw three guys, § 87(2)(b), § 87(2)(b) and § 87(2)(b) (whose real name is § 87(2)(b)) down stairs with § 87(2)(b) who was in a relationship with § 87(2)(b). § 87(2)(b) did not know the full name or address for the males who observed the police interaction with § 87(2)(b). § 87(2)(b) had not observed the interaction the officers had with § 87(2)(b) in front of the building. § 87(2)(b) told her that he was also stopped but the officers let him go.

§ 87(2)(b) drove to the 44th Precinct along with § 87(2)(b) and two other individuals. § 87(2)(b) asked to speak with a desk sergeant or whoever was in charged. PO1 a Spanish male officer, 5’6”-5’7” tall and 185 pounds, medium build with short dark hair was possibly a Sergeant or Lieutenant and wore a gold badge. He asked § 87(2)(b) what was the problem. She explained that officers were on § 87(2)(b) and § 87(2)(b) and beat her son up. § 87(2)(b) asked PO1 for the names and badge numbers of the officers involved. PO1 said he could not give § 87(2)(b) that information. PO1 asked § 87(2)(b) who her son was. § 87(2)(b) pointed out § 87(2)(b) who was handcuffed at the time. The three officers that were standing with § 87(2)(b) began to punch him with a closed fist in the chest and then in the face 8-10 times. PO2 a white male, 5’8” tall and 250 pounds with a bald head stood on the right side of § 87(2)(b). § 87(2)(b) was not certain where PO2 struck § 87(2)(b). PO3 was 6’1” tall, with brown hair and stocky build. § 87(2)(b) could not describe the last officer that struck § 87(2)(b). § 87(2)(b) leaned forward as a result of being struck and told § 87(2)(b) to look at what the officers were doing to him. § 87(2)(b) asked PO1 if he was going to stand there and let the officers beat up § 87(2)(b).

§ 87(2)(b) began to yell inside of the precinct and told the officers to take him instead of § 87(2)(b). § 87(2)(b) and § 87(2)(b) pulled § 87(2)(b) out of the precinct. § 87(2)(b) said she wanted names and numbers of the officers that beat up § 87(2)(b). Six to eight officers were standing behind PO1. The officers started to cover their badges. § 87(2)(b) asked PO1 if he was going to give her

the names and badge numbers of the officers involved, and he said no. § 87(2)(b) asked PO1 for his name and badge number. PO1 covered his badge and did not provide it. As § 87(2)(b) stayed in the precinct, she called the Internal Affairs Bureau. An investigator from IAB called the precinct. A woman at the front desk called PO1 "Sergeant" and gave him the telephone. PO1 then asked § 87(2)(b) if he could speak with her. § 87(2)(b) refused and asked PO1 to give her names and badge numbers of the officers who interacted with her son in the precinct. PO1 said he could not give the information. § 87(2)(b) asked PO1 if he was refusing to give her names and badge numbers. PO1 said yes because § 87(2)(b) was being arrested. § 87(2)(b) asked what § 87(2)(b) was being arrested for. PO1 said he did not know but if § 87(2)(b) waited around, he would tell her. § 87(2)(b) did not wait and left to go back home

§ 87(2)(b)
§ 87(2)(b) a § 87(2)(b) black female, was interviewed at the CCRB on April 9, 2009 (Encl. 23a-d).
§ 87(2)(b) is 5'8" tall and 185 pounds with black hair and brown eyes. § 87(2)(b)
and resides at § 87(2)(b) § 87(2)(b) in the Bronx with her boyfriend,
§ 87(2)(b)

On January 23, 2009, at approximately 12:40PM, § 87(2)(b) and § 87(2)(b) were alone in their apartment. § 87(2)(b) left to go to the store on § 87(2)(b) and § 87(2)(b). As soon as § 87(2)(b) left, § 87(2)(b) called him on the phone to ask him to get her something also. § 87(2)(b) told § 87(2)(b) to hold on and said that he was being harassed by police officers. § 87(2)(b) could not clearly hear all of the conversation that the officers had with § 87(2)(b). The officers asked § 87(2)(b) if he lived in the building. § 87(2)(b) said yes. § 87(2)(b) a friend of § 87(2)(b)s, was outside and told the officers that § 87(2)(b) lived in the building. § 87(2)(b) did not hear anything that the officers said to or asked § 87(2)(b). Suddenly, § 87(2)(b) could hear § 87(2)(b) tell someone to stop punching on him. It took § 87(2)(b) one minute to get down stairs and exit the building. § 87(2)(b) § 87(2)(b) and § 87(2)(b) were outside. § 87(2)(b) and § 87(2)(b) neighbors from their building, were standing across the street at the store observing the incident.

§ 87(2)(b) stood by the door of the apartment building and did not move closer to where § 87(2)(b) was standing. She did not observe any officers have a physical interaction with § 87(2)(b) or anyone else outside. § 87(2)(b) was on the corner of their apartment building near the metal railing that surrounds the building. His upper body was leaned over the railing. PO1, a bald, chubby Caucasian officer (identified as PO Ramunno), PO2, a short Puerto Rican or Mexican officer with black hair (identified as Lt. Orellana) and PO3, a Caucasian female officer with blond hair, and slim build (identified as PO Cinnante) were interacting with § 87(2)(b). All of the officers were dressed in uniform.

§ 87(2)(b) observed PO Ramunno hitting § 87(2)(b) in the right side of his ribs 2-3 times. Lt. Orellana held § 87(2)(b)s arms behind his back as PO Ramunno hit him. § 87(2)(b) was already in handcuffs when this occurred. PO Cinnante did not strike § 87(2)(b) she just stood back and observed the other two officers. The officers began to place § 87(2)(b) into their marked police van. § 87(2)(b) asked the officers what they were doing and told them to leave § 87(2)(b) alone. PO Cinnante told § 87(2)(b) and the others outside to calm down. PO Cinnante told § 87(2)(b) to mind her business and said the incident had nothing to do with her. § 87(2)(b) was mad and told the officers to let § 87(2)(b) go. The officers did not respond to § 87(2)(b) and seemed to ignore him. § 87(2)(b) did not hear any of the officers, § 87(2)(b) or § 87(2)(b) use profanity. The officers were laughing and thought that things were funny. § 87(2)(b) did not resist arrest. § 87(2)(b) asked PO Cinnante why they were taking § 87(2)(b) and she explained that § 87(2)(b) had a warrant. § 87(2)(b) responded that having a warrant did not give the officers the right to hit anyone. PO Cinnante told § 87(2)(b) to come to the precinct to complain or to find out what was going on.

§ 87(2)(b) § 87(2)(b) § 87(2)(b) an unidentified girl and another male went to the precinct. They observed PO Ramunno, Lt. Orellana and another unidentified male officer forcefully pushing § 87(2)(b) into his cell. The officers had their hands on § 87(2)(b)s head and arms as they pushed him into the cell. The officers did not strike or punch § 87(2)(b) while he was at the precinct. Everyone present was talking at one time. § 87(2)(b) said that she

wanted badge numbers of the officers that interacted with § 87(2)(b) but it was not provided. § 87(2)(b) did not hear § 87(2)(b) request the name or badge number of the desk sergeant or person at the front entrance. § 87(2)(b) talked to an officer at the precinct and then she asked everyone to go outside. § 87(2)(b) did not hear the conversation that § 87(2)(b) had with the officer. After everyone went home, § 87(2)(b) went back to the precinct to retrieve § 87(2)(b)'s property and give him some money. § 87(2)(b) talked to PO Ramunno and PO Cinnante and explained that § 87(2)(b) would be out the next day and that the incident was a big misunderstanding. § 87(2)(b) believed that PO Ramunno was a sergeant because he was always in their neighborhood.

Attempts to contact victims and witnesses

The IAB Log listed an address and phone number for § 87(2)(b). Please call letters were mailed to § 87(2)(b) on February 3, 2009 and March 17, 2009. The letters were not returned. The phone number, however, was incorrect. § 87(2)(b) contacted the CCRB via telephone on March 5, 2009 and updated his contact information. § 87(2)(b) indicated that he was searched by a tall, white male with a bald head. § 87(2)(b) stated that he would come to § 87(2)(b)'s residence to be interviewed on March 12, 2009. On the date of the interview, § 87(2)(b) did not keep the appointment. Two additional attempts were made to contact § 87(2)(b) via telephone. Each time there was no answer and no option to leave a message. § 87(2)(b) contacted the CCRB via telephone on March 25, 2009, and made an appointment to come in for an interview on March 27, 2009. § 87(2)(b) did not appear as scheduled and did not call to cancel. As of the date of this report, § 87(2)(b) has not contacted the CCRB.

An address was provided on the IAB Log from § 87(2)(b). Two letters that were not returned were mailed to § 87(2)(b) on February 3, 2009 and March 17, 2009. The phone number originally provided on the IAB Log for § 87(2)(b) was not correct. After trying to contact § 87(2)(b) twice via telephone, a woman answered indicating that she did not know § 87(2)(b). A search of COLES Directory provided an additional number for § 87(2)(b). On March 18, 2009, § 87(2)(b) was contacted at his mother's residence. § 87(2)(b) indicated that § 87(2)(b) did not live with her but he came by the residence periodically. § 87(2)(b) did not wish to provide any additional information. A final attempt to contact § 87(2)(b) via telephone at his mother's residence was made on March 24, 2009 and a voicemail message was left. As of the date of this report, § 87(2)(b) has not contacted the CCRB.

§ 87(2)(b) provided a telephone statement when she was contacted on February 11, 2009. An appointment was made for her to be interviewed at her home on March 12, 2009. On the date of the interview, § 87(2)(b) was asleep and her mother did not want to wake her. § 87(2)(b) was contacted five additional times between March 12, 2009 and March 31, 2009. § 87(2)(b) made an appointment to appear at the CCRB on April 1, 2009. § 87(2)(b) missed her interview and did not contact the CCRB to reschedule. Two letters were mailed to § 87(2)(b)'s address on February 3, 2009 and March 24, 2009, and they were not returned. As of the date of this report, § 87(2)(b) has not contacted the CCRB.

Letters mailed to § 87(2)(b) on March 24, 2009 and April 2, 2009. § 87(2)(b) was contacted via telephone five times between March 24, 2009 and April 10, 2009. On April 10, 2009, § 87(2)(b) made an appointment to appear for an interview on April 16, 2009. On the date of the appointment, § 87(2)(b) did not come in as scheduled. As of the date of this report, § 87(2)(b) has not contacted the CCRB.

A letter was mailed to § 87(2)(b) on February 3, 2009. Attempts were made to contact § 87(2)(b) five times between February 11, 2009 and March 31, 2009. On February 27, 2009, § 87(2)(b) stated that he would be available for an interview on March 12, 2009. On that date, § 87(2)(b) was not home and could not be interviewed. § 87(2)(b) did not call to cancel in advance. On March 18, 2009, § 87(2)(b) made an appointment to appear at the CCRB on March 25, 2009 but cancelled on the date of the interview. § 87(2)(b) was called a final time to make an appointment on March 31, 2009. He did not know his availability at the time and said he would call back when he did. As of the date of this report, § 87(2)(b) did not contact the CCRB.

§ 87(2)(b) revealed himself as a witness when a canvass was conducted on March 12, 2009 at § 87(2)(b) in the Bronx. § 87(2)(b) did not wish to be interviewed there and said he would contact the CCRB later with a better date and time. On March 24, 2009, § 87(2)(b) was contacted via telephone.

He was leaving the apartment at the time and could not speak. He said he would call back later. Four additional attempts to contact § 87(2)(b) via telephone were made until April 10, 2009. Each time, the line was busy. Letters addressed to § 87(2)(b) on April 7, 2009 and September 25, 2009, were not returned. As of the date of this report, § 87(2)(b) has not contacted the CCRB.

§ 87(2)(b) indicated that § 87(2)(b) lived in § 87(2)(b) within her apartment building. § 87(2)(b) was contacted via telephone on March 17, 2009, at which time he stated that he did not know § 87(2)(b) real name. When § 87(2)(b) saw § 87(2)(b) and asked him if he wanted to provide a statement to the CCRB, § 87(2)(b) said he would get back to § 87(2)(b). There were no occupants listed in the COLES Directory or in Lexis Nexis within § 87(2)(b) at § 87(2)(b). Two letters were addressed to § 87(2)(b) residence and mailed on September 25, 2009 and September 30, 2009. The letters were not returned. As of the date of this report, § 87(2)(b) has not contacted the CCRB.

§ 87(2)(b) indicated that § 87(2)(b) lived in § 87(2)(b) within her apartment building. A search was conducted in the COLES directory providing a phone number associated with the apartment. The real name of § 87(2)(b) is unknown so any additional searched by name could not be conducted. Letters mailed to § 87(2)(b)'s residence were not returned. Five attempts were made to contact § 87(2)(b) via telephone between March 24, 2009 and April 16, 2009. Each time there was no answer and no option to leave a message. § 87(2)(b) was contacted via telephone on April 2, 2009, to inquire about any additional information for § 87(2)(b). § 87(2)(b) was busy and said he would call back. As of the date of this report, § 87(2)(b) has not contacted the CCRB.

Officer Identification

Lt. Orellana was listed on the IAB Log as a subject officer. He was partnered with PO Ramunno and PO Cinnante at the time of the incident and in a marked police van. Sgt. Perez was the Desk Sergeant on the date of the incident.

Officer Statements

Lt. Johnny Orellana

Lt. Johnny Orellana, a § 87(2)(b)-old Hispanic male, was interviewed at the CCRB on May 28, 2009 (Encl. 25a-c). Lt. Orellana is § 87(2)(b) with black hair and brown eyes. On January 23, 2009, Lt. Orellana worked a tour of 5:30PM to 2:15AM the following day. He was the Impact Lieutenant working with PO Steven Ramunno and PO Lauren Cinnante. All of the officers were dressed in uniform and assigned to a marked patrol van. PO Ramunno was the operator and LT Orellana was in the passenger's seat. Lt. Orellana did not have any memo book entries regarding the incident.

On January 23, 2009, at approximately 12:40AM, Lt. Orellana and his partners were driving down § 87(2)(b) in the Bronx on routine patrol. While two car lengths away from the corner of § 87(2)(b) Lt. Orellana observed a black male, 5'11" tall and slim build exiting § 87(2)(b) which is a clean halls building. The building is a drug prone location and specifically the corner has drug activity. The building is on the corner of Anderson and § 87(2)(b). There is a ramp connected to the entrance door that civilians have to walk down to exit. There are bars around the building. A photograph of § 87(2)(b) was shown to Lt. Orellana and he confirmed that § 87(2)(b) was the individual he saw exiting the building. § 87(2)(b) was alone but one male and one female were also outside and on the corner.

Lt. Orellana made the decision to stop § 87(2)(b) because he was exiting a clean halls building. There was no other reason for the stop. From his understanding, officers are allowed to stop people inside of and people exiting clean halls buildings. § 87(2)(b) was down the ramp and near the corner by the time that Lt. Orellana and his partners stopped their vehicle. Lt. Orellana did not see § 87(2)(b) interact with the individuals on the corner prior to approaching him. Lt. Orellana was not sure which officer initiated the conversation. The officers asked § 87(2)(b) if he lived in the building. § 87(2)(b) had a bad attitude. He told the officers that he just left the building so it was safe to believe that he lived there. When the officers asked for identification, § 87(2)(b) questioned the reason it was needed and why the officers were stopping him. The officers explained that he was coming out of the clean-halls building so they wanted to verify that he lived there. § 87(2)(b) produced identification which did not have his address

printed on it. § 87(2)(b) also used profanity during the conversation. However, Lt. Orellana could not recall what § 87(2)(b) said.

Lt. Orellana did not recall whether he and his partners conversed with the other individuals on the corner at the time. Lt. Orellana told § 87(2)(b) to stay there, as he was not free to go. PO Ramunno went to the van to conduct a warrant check. Lt. Orellana did not recall if he interacted with any other civilians in that time frame. After a minute, PO Ramunno returned stating that § 87(2)(b) had an active and open warrant. Lt. Orellana told § 87(2)(b) that he forgot to go to court. § 87(2)(b) said he did not know what the officers were talking about because he did not have a warrant. § 87(2)(b) was facing the officers at the time. Lt. Orellana told § 87(2)(b) to turn around but he would not comply. PO Ramunno grabbed § 87(2)(b)'s left hand and Lt. Orellana grabbed his right hand. The officers turned § 87(2)(b) around and he grabbed onto the railing attached to the building. PO Cinnante was watching and did not interact with § 87(2)(b).

At some point while the officers were trying to place § 87(2)(b) under arrest, a black male, 5'11" tall and claiming to be § 87(2)(b)'s brother, came outside. Lt. Orellana recognized a photograph of § 87(2)(b) as the male. § 87(2)(b) approached the officers and asked them what they were doing to his brother and why they were arresting him. § 87(2)(b) started running and telling the officers to chase him or arrest him instead. No one else came outside. § 87(2)(b) resisting in that he moved his hands around and would not let go of the pole. Lt. Orellana tried to break § 87(2)(b)'s grip by grabbing his wrists. Lt. Orellana and PO Ramunno did not punch § 87(2)(b) in the legs, ribs or face. No additional force beyond grabbing § 87(2)(b)'s arms was used. PO Ramunno was able to handcuff him quickly. Lt. Orellana did not remember if he told § 87(2)(b) that he would be arrested if he did not back up. No other civilians approached the officers. PO Ramunno and Lt. Orellana did not push anyone or tell them to get back.

§ 87(2)(b) was frisked after he was placed in handcuffs. However Lt. Orellana did not recall which officer conducted the frisk. No other civilians were frisked or searched at the location. § 87(2)(b) was placed in the rear of the police van with PO Cinnante seated in front of him. Lt. Orellana did not hear PO Cinnante tell § 87(2)(b) to "go the fuck inside", "shut the fuck up" or "it's none of his fucking business". Lt. Orellana did not remember if § 87(2)(b) used profanity towards PO Cinnante. While inside of the police van, § 87(2)(b) was still uncooperative. Lt. Orellana did not recall anything that § 87(2)(b) said while in the van. PO Cinnante was professional. Lt. Orellana did not hear PO Cinnante say "fuck you or fuck your mother", "you were fucking resisting, you should not fucking resist."

§ 87(2)(b) was taken to the 44th Precinct. Lt. Orellana was not sure who the desk officer was. After reviewing the roll call, he could not tell if Sgt Perez or Sgt Rodriguez were at the desk. Lt. Orellana did not recall any of § 87(2)(b)'s family coming to the precinct. Lt. Orellana did not recall if § 87(2)(b) physically resisted being placed in the cell. Internal Affairs did not contact Lt. Orellana or question him about § 87(2)(b)'s arrest. A photograph of § 87(2)(b) was shown to Lt. Orellana and he did not recognize her. Lt. Orellana did not recall if a person yelled, "I want names and badge numbers". He did not cover his badge to prevent his name from being recorded and did not see PO Ramunno do that.

PO Steven Ramunno Police Officer Steven Ramunno, a § 87(2)(b)-old white male, was interviewed at the CCRB on June 24, 2009 (Encl. 27a-c). PO Ramunno is § 87(2)(b) with a bald head and brown eyes. On January 23, 2009, PO Ramunno worked a tour of 5:30PM- 2:05AM the following day. He was assigned to IMPACT training with Lt. Johnny Orellana and PO Lauren Cinnante. All of the officers were dressed in uniform and assigned to marked patrol van #5630 in which PO Ramunno was the operator and Lt. Orellana was the recorder. PO Ramunno read memo book entries regarding the incident verbatim for the record as: 12:50AM, One under. See PO Cinnante from § 87(2)(b).

§ 87(2)(g)

On January 23, 2009, at approximately 12:40AM while on routine patrol, PO Ramunno and his partners observed § 87(2)(b) exit a NYC Clean Halls building that is also a known drug location. PO Ramunno is familiar with the building in that he has conducted vertical patrols there and has stopped people for criminal

trespass there. PO Ramunno learned in the police academy that he is allowed to stop anyone inside and anyone exiting a clean halls building to verify if the person is a tenant or if they were visiting a tenant. PO Ramunno asked § 87(2)(b) to speak with him and then asked him about his reason for being in the building. § 87(2)(b) had completely walked down the ramp of his building near the railing attached to the building. PO Ramunno suspected that § 87(2)(b) was trespassing and could possibly be involved in drug activity. This was based on the history of drug activity in the building and had nothing to do with § 87(2)(b)'s behavior. PO Ramunno did not have a reason to believe that § 87(2)(b) had drugs on his person. The officers did not see § 87(2)(b) involved in drug activity and had no knowledge that he was in the building for drugs before interacting with him.

PO Ramunno intended to bring § 87(2)(b) into the building to knock on the door where he lived to confirm his reason for being there. PO Ramunno conducted a pat down frisk for his safety. He did not believe § 87(2)(b) had a weapon on his person. PO Ramunno frisked § 87(2)(b) because he intended to go inside of the building with him and did not want § 87(2)(b) to try to attack him with a weapon while in the building. PO Ramunno did not feel any weapons so he did not enter § 87(2)(b)'s pockets. PO Ramunno did not recall seeing anyone outside or with § 87(2)(b) as they questioned him. The officers did not question, frisk or search any other individuals. § 87(2)(b) became combative after the frisk. He cursed at the officers, stating that he lived in the building and the officers were only stopping him because he was black. § 87(2)(b) commented that the officers should have something better to do than to stop him. PO Ramunno and his partners were calm and tried to explain the reason for the stop to § 87(2)(b).

Lt. Orellana and PO Cinnante stayed with § 87(2)(b) while PO Ramunno went to the patrol car to check if § 87(2)(b) had a New York State identification number (NYSID) on file with an address matching the location. The results indicate that he had an active and open warrant. PO Ramunno informed Lt. Orellana of the warrant and was then instructed to place § 87(2)(b) under arrest. PO Ramunno could not recall if § 87(2)(b) was facing the railing or away from the railing at the time. The officers gave § 87(2)(b) verbal commands to turn around and place his hands behind his back. § 87(2)(b) was not compliant. He tightened up his body and refused to be handcuffed by grabbing onto the metal railing. § 87(2)(b) began screaming at the windows of the apartment building and yelled to his family that the officers were attacking him and stopping him for no reason.

PO Ramunno and his partners tried to grab onto § 87(2)(b)'s hands and remove them from the railing. PO Ramunno was not sure which arm he or his partners grabbed. § 87(2)(b)'s relatives came downstairs and caused a commotion on the street. PO Ramunno recognized photographs of § 87(2)(b) and § 87(2)(b) as individuals that came outside. The family members were within one to two arms lengths of the officers and yelled that the officers were stopping § 87(2)(b) for no reason. PO Ramunno did not recall if § 87(2)(b) tried to strike him or his partners. As § 87(2)(b) tensed his body, PO Ramunno struck § 87(2)(b) in one of his thighs to knock him off balance and gain control. The tactic is used to gain compliance and not used to cause injury. § 87(2)(b) put his hands behind his back as a result. He did not yell or complain of pain. PO Ramunno did not punch § 87(2)(b) in the ribs and he did not recall how he struck § 87(2)(b) whether with a closed fist or open hand. § 87(2)(b) did not fall to the ground and was able to walk. PO Ramunno was not sure how long it took to handcuff § 87(2)(b).

Verbal commands were given to people telling them to get back. PO Ramunno did not recall pushing anyone back or seeing another officer do this. PO Ramunno did not use profanity and he did not hear PO Cinnante use profanity. § 87(2)(b) cursed at the officers from the back of the van though PO Ramunno could not recall what § 87(2)(b) said. The officers went to the 44th Precinct. PO Ramunno was not sure who was the desk officer was at the time. § 87(2)(b)'s family came and talked to Lt. Orellana. PO Ramunno did not recall if § 87(2)(b) was visible to his family while at the precinct. PO Ramunno did not strike or physically interact with § 87(2)(b) at the precinct and did not see any other officers do so. PO Ramunno did not hear anyone request his or any officer's name or shield number. He did not interact with the family and did not recall how many people came to the precinct. He was not sure of the family's behavior or if they were asked to leave.

PO Lauren Cinnante

Police Officer Lauren Cinnante, a § 87(2)(b)-old white female, was interviewed at the CCRB on May 26, 2009 (Encl. 30a-c). PO Cinnante is § 87(2)(b) with blond and brown hair worn in a ponytail and brown eyes. PO Cinnante was scheduled to work from 5:30PM on January 22, 2009 to 2:05AM on January 23, 2009. She ended her tour at 5:05AM due to her arrest. She was assigned to training 3 which is a van that does patrol. In the beginning of her tour she was at traffic court but upon her return, she was partnered with PO Ramunno and Lt. Orellana. All of the officers were dressed in uniform and assigned to a marked patrol van in which PO Ramunno was the operator. PO Cinnante read memo book entries reflecting that at 12:40 AM, one male was stopped in front of § 87(2)(b) and under arrest as of 12:50AM. At 2:55AM, § 87(2)(b) picked up § 87(2)(b)'s property and gave \$2.00 to § 87(2)(b).

§ 87(2)(g)

PO Cinnante did not recall who initiated the conversation with § 87(2)(b). She believed that someone may have asked § 87(2)(b) for identification because it would have been standard procedure. She could not recall who did. PO Cinnante did not remember if the other male with § 87(2)(b) at the time was asked any questions. After the warrant check was positive, § 87(2)(b) was informed that he was to be arrested. § 87(2)(b) became very aggravated. When the officers attempted to grab § 87(2)(b)'s arms, he flailed them and tried to throw his weight around. The officers held onto § 87(2)(b)'s arms after he turned around on his own. When § 87(2)(b) pushed his weight back, the officers pushed him forward and onto the metal railing and handcuffed him in less than a minute. The officers did not engage in any additional physical interaction with § 87(2)(b) besides handcuffing him. PO Cinnante did not see anyone punch § 87(2)(b) on any part of his body.

PO Cinnante did not remember if anyone came outside while the officers interacted with § 87(2)(b). She did not remember if a crowd gathered or if anyone tried to intervene with the arrest process. She did not recall if she or the officers needed to give any verbal instructions to anyone outside. § 87(2)(b) sat in the back row by himself. PO Cinnante did not remember the conversation that transpired between her and § 87(2)(b). § 87(2)(b) was yelling and screaming about something but PO Cinnante could not recall what. When asked if § 87(2)(b) used profanity, PO Cinnante stated that she was sure he did and remembered that he was "nasty". However, she could not recall anything specific that § 87(2)(b) said. She denied using any profanity against § 87(2)(b).

After transporting § 87(2)(b) to the precinct, a crowd formed outside. PO Cinnante did not recall how many people were present but remember they were there for § 87(2)(b). PO Cinnante, PO Ramunno and LT Orellana stayed with § 87(2)(b) while he was inside of the precinct. PO Cinnante did not recall who was at the desk. PO Cinnante did not remember the conversation that the crowd had with officers at the precinct regarding § 87(2)(b) or hearing anyone ask for officers' names and or badge numbers.

Sgt. Eusebio Perez

Sgt. Eusebio Perez, a § 87(2)(b)-old Hispanic male, was interviewed at the CCRB on September 3, 2009 (Encl. 32a-b). Sgt. Perez is § 87(2)(b) with short brown hair and brown eyes. On January 23, 2009, Sgt. Perez worked a tour of 11:05PM to 8:02AM the following day. He was the desk sergeant working inside of the 44th Precinct. Sgt. Perez did not have a partner or a vehicle. He did not have memo book entries but stated that the command log is in his hand writing and serves as his memo book.

On January 23, 2009, at approximately 1:00AM, a group of approximately 15 people gathered at the 44th Precinct stationhouse because one of their family members was arrested. The family was loud and boisterous. They came into the stationhouse and went to a large gate where inquiries are made. It was a change of tour at the time so several officers were entering and leaving. Lt. Johnny Orellana was present, as he was involved in the arrest of the groups' family member. Sgt. Perez went to the gate to inquire about what was going on. However, Lt. Orellana said he would handle it. The front desk was 15 feet away from where the group was standing. Sgt. Perez did not hear the conversation between Lt. Orellana and the family. He also was not sure if there were any other supervisors in the stationhouse at the time. At no time did Sgt. Perez see any officers using force against an arrested individual and he did not hear the family members' requests names and or badge numbers of any officers. Sgt. Perez was not sure how long the family was there, as he was busy at the time with other administrative duties.

Police Documents

Tour 3 Roll call indicates that Lt. Orellana worked as the Platoon Commander and Impact Lieutenant (Encl. 35a-c). PO Ramunno and PO Cinnante were assigned to Impact training working a tour of 5:30PM-2:05AM the following day.

The Command Log listed § 87(2)(b)'s arrest at 12:10AM by PO Cinnante (Encl. 37). § 87(2)(b) was arrested for § 87(2)(b).

Warrant Check

A warrant check was conducted for § 87(2)(b) on January 23, 2009 by PO Ramunno (Encl. 39). The officer's tax number appears on the warrant check. There is no warrant check conducted for § 87(2)(b) on that date.

Notice of Claim

A notice of claim has not been filed (Encl. 42v).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Subject Officer's CCRB History

Lt. Orellana has been employed by the NYPD for eleven years and has no substantiated allegations (Encl. 4). PO Ramunno has been employed by the NYPD for six years and has no substantiated allegations (Encl. 5a-b). PO Cinnante has been employed by the NYPD for one year and has no substantiated allegations (Encl. 6). Sgt. Eusebio Perez has been employed by the NYPD for 14 years and has no substantiated allegations (Encl. 7).

Civilian CCRB History

This is the first time that § 87(2)(b) and § 87(2)(b) have filed a complaint with the CCRB (Encls. 8-10 and 12). § 87(2)(b) has filed three complaints with the CCRB (Encl. 11). § 87(2)(b)

Conclusions and Recommendations

Subject Officer Identification

During his interview, Lt. Orellana indicated that it was his decision to stop § 87(2)(b) § 87(2)(b) alleged that Lt. Orellana punched him in the legs and also told § 87(2)(b) to get back and then pushed him. § 87(2)(g) § 87(2)(b) alleged that a bald white male officer searched him. PO Ramunno matched the description provided § 87(2)(g) § 87(2)(b) alleged that PO Ramunno also punched him in the legs and ribs. § 87(2)(g) § 87(2)(b) and § 87(2)(b) alleged that PO Cinnante used profanity when speaking to them. § 87(2)(g) § 87(2)(b) alleged that she spoke with a Hispanic male officer with dark hair, wearing a blue uniform shirt and a gold badge. § 87(2)(b) was sure that the officer was not wearing a white shirt and the officer was referred to as Sergeant by an officer in the precinct. § 87(2)(b) alleged that the officer refused to provide his name and shield when asked. Sgt. Perez was the desk sergeant at the time and was at the stationhouse. § 87(2)(g)

Undisputed Facts

Lt. Orellana made the decision to stop § 87(2)(b) because he was exiting a clean halls building. § 87(2)(b) was asked if he lived in the building and for identification. A warrant check was conducted, revealing that § 87(2)(b) had an active open warrant. While trying to affect the arrest of § 87(2)(b) PO Ramunno struck § 87(2)(b) in one of his thighs. § 87(2)(b)'s body was pressed against the metal railing attached to his building. § 87(2)(b) was arrested and taken to the precinct stationhouse for processing.

Disputed Facts

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

Assessment of the Evidence

§ 87(2)(g)
[REDACTED]
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§ 87(2)(g)

Allegations not pleaded

§ 87(2)(b) alleged that after Lt. Orellana searched § 87(2)(b) Though § 87(2)(b) did not provide a statement to the CCRB, in a brief phone conversation he indicated that PO Ramunno was the officer that searched him. § 87(2)(g) . § 87(2)(g)

§ 87(2)(b) alleged that she saw officers punch § 87(2)(b) in the face and body while inside of the precinct. § 87(2)(b) denied that this happened. § 87(2)(g)

Allegation A: Lt. Johnny Orellana stopped § 87(2)(b)

Lt. Orellana approached § 87(2)(b) because he observed § 87(2)(b) exit § 87(2)(b) which is a Clean Halls building. Lt. Orellana did not suspect that § 87(2)(b) was engaged in criminal activity and did not receive any calls regarding any incidents at the building. According to Kamin's "New York Search and Seizure" guide to street encounters regarding vertical patrols and trespass affidavit buildings, "If § 87(2)(b) exits a trespass affidavit building, a police officer cannot approach that individual and request information merely because he exited the building. However, if there is some factor in addition to the existence of the affidavit, the police may conduct a level-one or level-two inquiry, depending on the information known to them." (Encl. 1a-e)

In Supreme Court Case People v. David Holland the court determined that knowledge of a trespass affidavit and a person's conduct in exiting the building does not provide officers with an "objective, credible reason" to approach (Encl. 2a-d). Police have the authority to enter a trespass affidavit building for the purpose of excluding trespassers and doing vertical patrols. § 87(2)(g)

Therefore, it is recommended that Allegation A be closed as "Substantiated."

Allegation B: PO Steven Ramunno searched § 87(2)(b)

§ 87(2)(b) alleged that PO Ramunno searched him. § 87(2)(b) did not provide a statement to the CCRB § 87(2)(g) . § 87(2)(b) did not observe PO Ramunno conducting a search of § 87(2)(b) and instead stated that the search was conducted by Lt. Orellana. § 87(2)(g) It is recommended that allegation B be closed as "Complainant Uncooperative."

Allegation C: PO Steven Ramunno used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Ramunno punched him in his left thigh and ribs before he was handcuffed. PO Ramunno admitted that he struck § 87(2)(b) in the legs to gain compliance. By PO Ramunno, Lt. Orellana and PO Cinnante's statements, § 87(2)(b) resisted arrest by locking his body and holding onto a metal gate, preventing the officers from arresting him. This occurred prior to § 87(2)(b)'s family coming

out of the building and extended to while they were outside. § 87(2)(b) denies resisting arrest. § 87(2)(g)

According to Patrol Guide procedure 203-11 regarding the use of force, only that amount of force necessary to overcome resistance will be used to effect an arrest or take a mentally ill or emotionally disturbed person into custody (Encl. 3a-b). ” § 87(2)(g)

Therefore it is recommended that allegation C be closed as “Exonerated.”

Allegation D: Lt. Johnny Orellana used physical force against § 87(2)(b)

§ 87(2)(b) alleged that Lt. Orellana punched him once in his leg and twice in the ribs just before he was handcuffed. § 87(2)(b) and § 87(2)(b) did not corroborate § 87(2)(b)'s statement and only observed PO Ramunno using physical force. Lt. Orellana denied striking § 87(2)(b). PO Cinnante corroborated Lt. Orellana's statement. PO Ramunno admitted that he struck § 87(2)(b) in the leg. However, he did not see Lt. Orellana use physical force against § 87(2)(b). § 87(2)(g)

Therefore it is recommended that allegation D be closed as “Unfounded.”

Allegation E: PO Steven Ramunno used physical force against § 87(2)(b) after he was handcuffs.

§ 87(2)(b) alleged that PO Ramunno punched him once on the left side of his ribs after he was handcuffed. § 87(2)(b) corroborated § 87(2)(b)'s statement. PO Ramunno denied striking § 87(2)(b) after he was in handcuffs. Lt. Orellana and PO Cinnante corroborated PO Ramunno's statement. § 87(2)(g)

Therefore it is recommended that allegation E be closed as “Unsubstantiated.”

Allegation F: PO Lauren Cinnante spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that PO Cinnante used profanity against him after he cursed at her in the police van. § 87(2)(b) alleged that PO Cinnante used profanity against him while the officers were trying to arrest § 87(2)(b). PO Cinnante denied using profanity at any time. PO Ramunno and Lt. Orellana corroborated PO Cinnante's statement. § 87(2)(g)

Therefore it is recommended that allegation F be closed as “Unsubstantiated.”

Allegation G: Sgt. Eusebio Perez refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Perez would not give his name and badge number to her when asked. He and several other officers covered their badge numbers with their hands. Sgt. Perez denied speaking to § 87(2)(b) at anytime and alleged that he was not asked to provide his name and shield number. PO Ramunno, Lt. Orellana and PO Cinnante did not recall interacting with § 87(2)(b) at the precinct stationhouse or hearing anyone request an officer's name and shield number. § 87(2)(g)

Therefore it is recommended that allegation G be closed as “Unsubstantiated.”

Investigator:
Nina S. Mickens

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: